

****03.06.2022****

****A New Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation into the operator Kaufland Romania SCS and has found a violation of the provisions of Article 29 and Article 32 paragraph (1) letter b), paragraph (2) and paragraph (4) of the General Data Protection Regulation.

The operator Kaufland Romania SCS has been fined in the amount of 9,893.2 lei (equivalent to 2000 EURO).

The investigation was initiated following the operator's submission, during the year 2022, of two notifications of personal data security breaches under the General Data Protection Regulation.

One of the data security breaches consisted of unauthorized access by some employees of the operator to the personal data of Kaufland customers.

Thus, the operator's employee who handled the complaint of a petitioner did not follow the internal procedure for resolving a complaint and allowed the document to be viewed by the security agent who subsequently misused the respective data, a situation that led to a violation of the confidentiality of the personal data of the petitioner.

During the investigation, it was found that the operator did not ensure appropriate technical and organizational measures to ensure that any natural person acting under the authority of the operator and having access to personal data processes it only at the request of the operator, violating the provisions of Article 29 and Article 32 of the General Data Protection Regulation.

The second data security breach consisted of the erroneous transmission to another recipient of a customer's order form through delivery platforms.

This situation led to the disclosure and unauthorized access to the personal data (name, surname, email address, phone number) of the Kaufland customer as a result of the operator's failure to comply with the working procedure in the case of deliveries through partner platforms.

As such, the National Supervisory Authority found that the operator did not implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing for the rights and freedoms of natural persons, generated in particular, accidentally or illegally, by the unauthorized disclosure of personal data.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****